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## Finance and Procurement Department Supply Chain Management

# Request for Bids (RFB)

**APPOINTMENT OF AN EXTERNAL LEGAL PANEL FOR THE SMALL ENTERPRISE DEVELOPMENT AND FINANCE AGENCY (SEDFA) FOR THE PERIOD OF THREE (03) YEARS.**

### Bid Information

|                                                                                                                                                                                                        |                                                                                                                                                     |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Bid Number</b>                                                                                                                                                                                      | <b>RFB 05-2026/2027</b>                                                                                                                             |
| <b>Bid Issued Date</b>                                                                                                                                                                                 | <b>10 July 2026</b>                                                                                                                                 |
| <b>Bid Submission Date &amp; Time</b>                                                                                                                                                                  | <b>03 August 2026 @11:00 am</b>                                                                                                                     |
| <b>Bid Description</b>                                                                                                                                                                                 | Appointment of an External Legal Panel for the Small Enterprise Development and Finance Agency (SEDFA) for a period of three (03) years.            |
| <b>Bid Submission Address</b>                                                                                                                                                                          | SEDFA Head Office-Centurion<br>Byls Bridge Building 14, Block D, 11 Bylsbridge Boulevard,<br>Cnr Jean Avenue and Olievenhoutbosch Road<br>Centurion |
| <b>Bid Contact Person</b>                                                                                                                                                                              | Sebotse Mokgabudi<br>smokgabudi@sedfa.org.za                                                                                                        |
| <b>Bid Validity Period</b>                                                                                                                                                                             | 120 days                                                                                                                                            |
| <b>Evaluation Method: Points System</b>                                                                                                                                                                | 80/20                                                                                                                                               |
| <b>Deadline for Responding to Clarifications for this bid</b>                                                                                                                                          | <b>24 July 2026 @ 12:00 p.m</b>                                                                                                                     |
| <b>Fraud Hotline</b> <i>to report any wrongful or criminal deception or coercion intended to result in financial or personal gain by any SEDFA employee or person involved in this bidding process</i> | 0800 000 663<br>(For <b>anonymous</b> reporting)                                                                                                    |
| <b>For complaints</b>                                                                                                                                                                                  | <a href="mailto:procurement_complaints@SEDFA.org.za">procurement_complaints@SEDFA.org.za</a>                                                        |



## Special Conditions and Requirement of Contract

### APPOINTMENT OF AN EXTERNAL LEGAL PANEL FOR SMALL ENTERPRISE DEVELOPMENT AND FINANCE AGENCY (SEDFA) FOR THE PERIOD OF THREE (03) YEARS.

#### 1. BACKGROUND

- 1.1. As of 01 October 2024, **sefa**, Seda, and the Cooperative Banks Development Agency (CBDA) have officially merged to form SEDFA. The incorporation of SEDFA stems from the signing of the National Small Enterprise Amendment Act 2024 (No. 21 of 2024) by President Cyril Ramaphosa on 23 July 2024, and its subsequent gazetting on 30 September 2024. SEDFA is a development finance institution, listed as a Schedule 3B National Government Business Enterprise, with the State as the sole shareholder and the Department of Small Business Development as the Executive Authority. SEDFA complies with both the Public Finance Management Act 1 of 1999 and the Companies Act 71 of 2008.
- 1.2. As a development finance institution, SEDFA provides both financial and non-financial support to Micro-Small Medium Enterprises (MSMEs) with the objectives to;
  - 1.2.1. Design and implement development support programs for small enterprises,
  - 1.2.2. Promote service delivery network that enhances the contribution of small enterprises to the South African economy,
  - 1.2.3. Foster economic growth, job creation, and equity in historically disadvantaged communities,
  - 1.2.4. Support, promote, and develop cooperative banks and cooperative financial institutions, and
  - 1.2.5. Strengthen the capacity of service providers to support and enable small enterprises to compete successfully both domestically and internationally.

#### 2. OVERVIEW OF REQUIREMENTS

- 2.1. The Legal and Compliance Division is responsible for providing objective value adding and innovative advisory services to SEDFA. The department ensures that the organization's legal risks are managed and mitigated adequately and reduces SEDFA's exposure to litigation while simultaneously maximizing collections and recoveries.
- 2.2. SEDFA seeks to appoint an external Legal Panel from whom assistance shall be sought on an as-needed basis. SEDFA requests proposals from capable external legal service providers from all nine (09) provinces of the Republic of South Africa.
- 2.3. "External Legal Panel" or "Panel" means the panel of pre-approved external legal , comprising law firms and/or individual legal practitioners, appointed by SEDFA to provide legal services on an as-needed basis. "Panel Member" means any firm or practitioner appointed to the Panel. "Panel Firm" means a law firm appointed



to the Panel. "Panel Attorney" means an individual legal practitioner assigned by a Panel Firm or appointed in an individual capacity to perform services.

- 2.4. SEDFA will consider bid documents/tenders from law firms and/or individual legal practitioners who have a registered office/(s) in any/or all provinces.
- 2.5. SEDFA reserves the right to negotiate rates.
- 2.6. Panel appointments do not guarantee work allocation.

### **3. BID SUBMISSION REQUIREMENTS**

- 3.1. Bids must be submitted in a **sealed envelope and marked** as follows:

#### **ATTENTION: SEDFA SUPPLY CHAIN MANAGEMENT**

Description of the Bid

Bid Number

Name of the Bidder

### **3.2. GENERAL BID REQUIREMENTS**

- a. Bid documents **must** be initialled on every page.
- b. Number of sealed envelopes/files must compose of one (1) **ORIGINAL** and one (1) electronic PDF **copy** of the original bid proposal document on a memory stick or flash drive.
- c. The bid proposal should be written in English including the certificates.
- d. Submissions of the Bid responses **MUST** be made by depositing the Bid proposal into the Tender Box situated at SEDFA Head Office at the physical address below on or before the closing date as stated on page 1 of this Request for Bid document under Bid Information.
- e. The bidder will bear all expenses associated with the preparation and submission of this Bid.

### **3.3. SEDFA PHYSICAL ADDRESS**

11 Byls Bridge Office Park

Building 14, Block D

11 Bylsbridge Boulevard

Cnr Jean Avenue & Olievenhoutbosch Road

Centurion

0157

For more information, please visit the SEDFA websites: [www.sedfa.org.za](http://www.sedfa.org.za).



### 3.4. BID RESPONSES

#### 3.4.1 BID FORMAT

- 3.4.2 Bidders shall submit their bid response in accordance with the requirements as outlined in the Bid Response Template provided in Appendix 1.
- 3.4.3 Each section must be clearly marked, and the documents must be bound.
- 3.4.4 The RFB comprises a number of sections, and the bidder's proposal must include all the required information and documentation as outlined in this RFB.

### 3.5. GENERAL CONDITIONS OF CONTRACT

- 3.5.1 Completion of all Standard Bidding Documents attached on **ANNEXURE A**, and adhering to all other requirements as outlined on each form. The following SBD and other forms must be duly completed and signed, and returned as part of the Bid Proposal:
  - a. **SBD 1:** Invitation to Bid.
  - b. **SBD 4:** Declaration of Interest.
  - c. **SBD 6.1:** Preference Points Claim Form.
  - d. Valid Tax Compliant Status (TCS PIN issued by SARS).
  - e. In bids where Consortium, Joint Ventures and Sub-Contractors are involved, it is required that each party must submit separate proof of Tax Clearance Certificate(s) or *PIN* issued by SARS. Copy of the Consortium/Joint Venture/ Sub-Contracting Agreement duly signed by all parties (If applicable).
  - f. Submission of a copy of a **valid B-BBEE certificate** issued through a SANAS Accredited Agency, with the exception of Exempted Micro Enterprises (EMEs) and Qualifying Small Enterprises (QSEs). These enterprises need to submit B-BBEE **sworn affidavits** as per the requirements of the Department of Trade, Industry and Competition (the **dtic**) for qualifying enterprises except those who fall under the Construction Sector Charter Council (CSCC). Other sworn affidavits will not be accepted. The **dtic** and CSCC affidavit templates are available under **ANNEXURE A**.
  - g. National Treasury **Central Supplier Database (CSD) registration** (The bidder to attach a proof of registration).
  - h. Submission of bidder's **Companies & Intellectual Property Commission (CIPC) registration documents**, listing all Directors or Shareholders and certified copies of the Identity Documents (ID) of Directors or Shareholders (not older than three months).
- 3.5.2 The successful bidder and its staff shall comply with all the laws of the Republic of South Africa and as it relates to this bid.



#### **4. PRE-TARGET REQUIREMENTS**

- 4.1 The pre-qualification criteria set is according to the Standard for Implementation of Regulation (8) 4 of the Preferential Procurement Policy Framework Act, 2000 and the amended Preferential Procurement Regulations of 2022 and SEDFA's developmental impact plan to provide support to targeted groups (Black owned, youth, women, disability, rural priority province and township).
- 4.2 In line with the above commitment, preference will be given to bidders complying with the following;
- a. Bidders having a stipulated minimum B-BBEE status level contribution from level 1 to level 4, unless otherwise stated on page 1 under Bid Information. The level will be determined depending on industry requirements.
  - b. Targeted groups that are black owned, women and youth.

#### **5. PRICE PROPOSAL**

- a. Bidders are required to complete and sign pricing proposals.
- b. **NB:** Failure to complete and submit a pricing proposal will lead to disqualification of the bid.

#### **6. LATE BIDS**

Bids submitted at the stated bid address, **after** the closing date & time, shall not be considered under any circumstances.

#### **7. COUNTER CONDITIONS**

Bidder's attention is drawn to the fact that amendments to any of the bid conditions or setting of counter conditions by the bidder shall render the bid invalid.

#### **8. BID DISTRIBUTION**

- 8.1. The distribution of this RFB outside the Republic of South Africa may be restricted or prohibited by the laws of other countries. Recipients of this RFB are advised to familiarize themselves with and comply with all such restrictions or prohibitions applicable in those jurisdictions, and neither SEDFA, nor any of their respective directors, officers, employees, agents, representatives, or advisors, accepts liability to any person or company for any damages arising out of or in connection with the breach of any restriction or provision outside the Republic of South Africa. Persons contemplating submitting a Bid are advised to obtain



legal advice as to the possible consequences thereof in terms of the law of the jurisdictions in which they are located.

- 8.2. Recipients of this RFB document may only distribute it to other parties whom they wish to involve as part of their bidder consortium in submitting a bid.

## **9. PRESENTATIONS**

SEDFA reserves the right to request that any bidder provide a formal presentation of its bid proposal, at a date and time to be determined by SEDFA. All instructions and clarification regarding the purpose and scope of the presentation/demonstration shall be provided by SEDFA. The bidder shall bear all expenses associated with the preparation of such presentations/demonstrations.

## **10. EVALUATION PROCESS**

This bid will be evaluated in four (04) stages as follows:

- Stage 1- Administrative Compliance Requirements (Initial Screening Process).
- Stage 2 - Mandatory Requirements.
- Stage 3.- Functionality Requirements.
- Stage 4 - Price and Preference (Specific Goals).

### **10.1. STAGE 1: ADMINISTRATIVE SCM COMPLIANCE (INITIAL COMPLIANCE PROCESS)**

During this stage, bid responses will be reviewed for purposes of assessing compliance with the RFB requirements including the General Conditions of Contract as outlined in this RFB in **ANNEXURE A**.

### **10.2. STAGE 2: MANDATORY REQUIREMENTS**

All bids will be evaluated by the evaluation panel independently in terms of the set evaluation criteria for mandatory as outlined in **ANNEXURE B**.

### **10.3. STAGE 3 - FUNCTIONALITY REQUIREMENTS**

- a. All bids will be evaluated independently by the evaluation in terms of the defined evaluation criteria for functionality evaluation.
- b. Bids that score less than **70 points out of 100** on functionality shall not be considered further.



- c. Bids will be evaluated on Functional requirements as outlined in **ANNEXURE C.**

**NB: Failure to comply with the scoring of 70/100 on functionality requirements in Stage 3 the bid proposal will be disqualified for further evaluations.**

#### **10.4. STAGE 4: EVALUATION OF PROPOSAL ON APPLICABLE POINTS SYSTEM**

- 10.4.1 Only bidders that have scored a minimum of **70/100** on functionality will be evaluated during stage 4 for pricing and specific goals in **ANNEXURE D.**
- 10.4.2 In terms of Preferential Procurement Regulations pertaining to the Preferential Procurement Policy Framework Act, 2000 (Act 5 of 2000) and the amended regulations, responsive bids will be adjudicated by the State on the applicable point system.
- 10.4.3 The applicable preference point system for this tender is the 80/20 preference point system.
- 10.4.4 In terms of 80/20 points system, points are awarded to bidders on the basis of:

| <b>CRITERIA</b> | <b>POINTS</b>     |
|-----------------|-------------------|
| Price           | 80                |
| Specific Goals  | 20                |
| <b>TOTAL</b>    | <b>100 POINTS</b> |

Specific Goals for this tender and points that may be claimed are indicated per table below:

| <b>CRITERIA</b>                                                                           | <b>POINTS</b>         |
|-------------------------------------------------------------------------------------------|-----------------------|
|                                                                                           | <b>(80/20 System)</b> |
| Enterprises<br>Size of enterprise: Micro, Small, Medium enterprises and large enterprises | 8                     |
| B-BBEE (Black Ownership)                                                                  | 2                     |
| Black Women Owned (more 30% owned)                                                        | 4                     |
| Target Youth Group                                                                        | 2                     |
| Spatial: Rural, Township & City                                                           | 4                     |
| <b>TOTAL POINTS</b>                                                                       | <b>20</b>             |



## Supporting Document for Claiming of Specific Goals:

The bidder must also indicate point claims on SBD 6.1.

**Size of Enterprise:** Micro, Small, Medium enterprises: maximum 8/20

**Verification Method:** National Small Enterprise thresholds for defining enterprise size classes by sector and CSD.

| SECTORS                     | SIZE OR CLASS OF ENTERPRISE | TOTAL ANNUAL TURNOVER                                                         | TOTAL FULL-TIME EQUIVALENT OF PAID EMPLOYEES |
|-----------------------------|-----------------------------|-------------------------------------------------------------------------------|----------------------------------------------|
| Finance & Business Services | Micro firms                 | Firm with an annual turnover less than R10 million.                           | 0-10 employees                               |
|                             | Small Firms                 | Firm with an annual turnover bigger than R 10million less than R45 million.   | 11-50 employees                              |
|                             | Medium Firms                | Firm with an annual turnover greater than R45 million but below R160 million. | 51-250 employees                             |
|                             | Large Firms                 | Firm with an annual turnover greater than R160 million.                       | Exceeding 250 employees                      |

**B-BBEE (Black Ownership):** Maximum 2/20 points.

**Verification Method:** BBBEE certificate and or Sworn Affidavit:

**Youth** = 2/20 points which will be allocated follows:

**Verification Method:** CIPC and or CSD

**Spatial:** Rural and Township and City-based enterprises: 4/20 points

- Rural = maximum 4 points
- Township= 2.4
- City= 0.8

**Verification method:** Copy of Utility Bill, Lease Agreement, Title Deed, letter from Municipality outlining the physical address of the company and official letter with stamp from the local councilor.

10.4.5 SEDFA reserves the right to enter into negotiations with the preferred bidder.

10.4.6 SEDFA reserves the right to provide a policy relating to the handling of information in terms of the Protection of Personal Information Act, 2013. (Act 14 of 2013) as amended.





## **11. POST AWARD CONDITIONS**

- 11.1. Services will be rendered during the working hours from Monday to Fridays, unless otherwise stated as detailed/ stated in the Scope of Work / Terms of Reference during the execution of the project;
- 11.2. The successful bidder must make sure that they comply with all relevant Employment legislation and applicable bargaining agreements, including the Unemployment Insurance Fund (UIF), Compensation for Occupational Injuries and Diseases Act (COIDA) and Pay As You Earn (PAYE);
- 11.3. Equipment and or productivity tools brought onto or used on site must comply with the Occupational Health and Safety (OHS) Act, 1993 (Act 85 of 1993) and any regulations promulgated in terms of this Act, where applicable;
- 11.4. The bidder shall be liable for insuring his/her staff member against any injury or death. The bidder should ensure that at all times their employees have the necessary Personal Protective Equipment (PPE) to conduct their work;
- 11.5. The successful bidder shall submit a monthly statement of all outstanding payments, credit notes issued, and payments made. Such statements shall also contain the order number, the details of the date of the transaction, the invoice number, remittance number and credit note details;
- 11.6. SEDFA shall not be held responsible in any way for any damages, losses, theft of equipment or any valuables of the successful bidder or injury of his/her employees whilst on site or in the execution of their duties;
- 11.7. All procurement related to this service, as outlined in this RFB, shall be conducted by SEDFA's Supply Chain Management division only.

## **12. PANEL UTILISATION GUIDELINES**

- 12.1. Once the panel is selected and appointed, formal requests for quotations which outline the service and/or project requirements with clearly defined deliverables will be sourced from the panel or work will be awarded on rotational basis based on the suitability of the skills matched on the project or scope.
- 12.2. Quotations will be sourced from the panel in line with the contracted/approved rates.



- 12.3. Quotations will be sourced from the panel and evaluated according to the points system outlined under clause **10.4** from a suitable Panel Member based on the skills required.
- 12.4. SEDFA reserves the right to increase or decrease the number of appointed to the panel, including expanding the scope of the panel or panelist and use of the panel to any company or associate of SEDFA.
- 12.5. Notwithstanding a panel firm's appointment to the panel, SEDFA reserves the right to appoint another law firm outside the panel with the requisite expertise and presence in the jurisdiction where the legal services are required, where this is considered necessary to protect SEDFA's interests.
- 12.6. The contracting for specific work assignments will be facilitated by the SCM department with the Legal and Compliance division.
- 12.7. The Panel Member/(s) will be notified of a brief to render service for a particular scope/matter falling within the area(s) of specialization, by means of an official brief/ purchase order/ appointment letter issued by the SEDFA SCM Division. No other communication in any form from any other official shall constitute a valid brief/appointment. Every Instruction must follow an approved requisition/brief, budget confirmation and conflict-of-interest check.
- 12.8. There is no guarantee that a Panel Member/(s) on the panel will be contracted for specific work assignments/projects during the tenure of this contract.
- 12.9. Assignments/projects will be clearly defined in terms of the scope of work and/or work packages, proposed timeframes, qualifying criteria, qualification requirements, expected duration (hours) amongst others.
- 12.10. SEDFA reserves the right to procure its requirements elsewhere should the minimum contract specified by the bidder from the Panel be more than that of the institution's requirements or if the services are promptly required and these are not appropriately available from the or in other cases, based upon urgency.
- 12.11. The Legal and Compliance Division reserves the right to allocate work packages/projects to more than one Panel Member, depending on the nature of the assignment/project.
- 12.12. The assignments/projects will be managed by the Group Executive: Legal and Compliance and/or his/her representative(s).



- 12.13. The successful bidders shall also provide the Group Executive: Legal and Compliance and his representative(s) with regular written communication containing status updates on the assignments allocated.
- 12.14. When requesting quotations, SEDFA reserves the right to apply the guidelines and prescribed hourly remuneration rates for consultants as contained in the National Treasury “Guide on Hourly Fee Rates for Consultants” (January 2003) for benchmarking and pricing purposes. SEDFA may further consider updated fee rates published by the Department of Public Service and Administration (DPSA) on its website (<http://www.dpsa.gov.za/projects/sdi/consultants.htm>) and/or relevant accredited professional body fee schedules.
- 12.15. Any travel costs/expenses incurred/disbursement claimed for will be reimbursed in line with SEDFA’s approved travel rates or at the discretion of SEDFA.

### **13. STAFF REQUIREMENTS**

- 13.1. Where applicable for this specific contract, the successful bidder must ensure the following:
  - a. The staff members must be competent, i.e., suitably qualified and experienced.
  - b. Staff members are adequately trained prior to commencement of the contract, and staff working under this contract are in good health.
  - c. That replacement staff is available should the need arise. The bidder is obligated to inform SEDFA of any removal and replacement, which can only be done with formal approval from SEDFA. No more than 55% of the staff shall be replaced or removed from the proposed team, unless SEDFA approved such.
  - d. Staff must be dressed appropriately as and where required.
  - e. At least 90% of the personnel assigned by the successful bidder to perform services under the contract must be South African citizens. SEDFA reserves the right to verify the citizenship status of such personnel and to require documentary proof where necessary.

### **14. RESOURCE REQUIREMENTS**

- 14.1. The successful bidder must provide the following equipment required by the bidder’s staff, in the execution of their duties:
  - a. Laptop or similar device.



- b. Internet connectivity.
- c. Transportation and/or vehicle (if required) to deliver the service outlined in this bid.
- d. Cell phone and/or landline.

## **15. SERVICE LEVEL AGREEMENT**

- 15.1 The successful bidders will be required to enter into a Service Level Agreement with SEDFA.
- 15.2 Performance measurement processes will form an integral part of the Service Level Agreement, to be signed after the successful bidder has been appointed.
- 15.3 Where SEDFA is dissatisfied with a bidder's poor performance, the Group Executive: Legal and Compliance and/or his representative(s) will engage the bidders to remedy the poor performance. Should SEDFA remain dissatisfied, the Group Executive: Legal and Compliance and/or his representative(s) may consider restricting the continued use of that bidder;
- 15.4 Additionally, the Group Executive: Legal & Compliance and/or his representative(s) may consider reporting the bidder to relevant professional body(ies) and other authorities for unprofessional (mis) conduct.
- 15.5 Administrative penalties may also be imposed on a bidder for poor performance and/or unprofessional conduct that is to the detriment of SEDFA.
- 15.6 A bidder's misconduct may result in that bidder being restricted via National Treasury's List of restricted suppliers.

## **16. SUPPLIER DUE DILIGENCE**

- 16.1 SEDFA shall at all times be entitled to conduct bidder due diligence for short-listed bidder prior to final award or at any time during the contract period. This may include site visits including conducting reference checks where necessary.
- 16.2 SEDFA reserves the right to request the successful bidder and its staff to undergo a security vetting and/or credit vetting processes via external services providers such as Credit Bureaus and the South African Police Services. By submitting a bid proposal, the bidder gives explicit approval for SEDFA to conduct such vetting requirements, if and when required.

## **17. BID CANCELLATION**

- 17.1. In the case of the cancellation of this RFB, SEDFA shall endeavor to inform all bidders, through the same medium used for the communication of the RFB.



## **18. MATERIAL CHANGES**

- 18.1 Any material changes in the control and/or composition of any bidder or any core member of a bidder after submission of a Bid, shall require the prior written approval of SEDFA, and any failure to seek such approval from SEDFA shall result in SEDFA being entitled, in its sole discretion, to exclude the relevant bidder from any further participation in the bid process or to cancel the engagement. This shall be interpreted to include post appointments and subcontracting of work arising out of this bid to complete certain work.
- 18.2 SEDFA shall be the sole arbiter as to what constitutes a material change in the control and/or composition of any bidder, and what constitutes a core member of a bidder for purposes of such approval. Any request for approval shall be submitted in writing to SEDFA's Supply Chain Management Division, and the bidder shall provide sufficient reasons and information to enable SEDFA to make such determination. SEDFA reserves the right to accept or reject any such request for approval.

## **19. FRAUD ALERT**

- 19.1 SEDFA takes a zero-tolerance approach to fraud, corruption, and bribery.
- 19.2 SEDFA is committed to acting fairly, with integrity, in all its' relationships and business dealings both internally and externally (with its suppliers, contractors and other stakeholders).
- 19.3 Please note that under no circumstances will SEDFA ever require any payment to secure an award of an RFP or a tender. Individuals that claim that an upfront payment to an individual, third party or a SEDFA official, is a blatant attempt at defrauding bidders, and such a scam must immediately be reported to the SEDFA Anti-Corruption line. SEDFA follows a fair, competitive, and transparent procurement process in evaluating and awarding bids.
- 19.4 Should you or anyone wish to report any suspected fraud, corruption or bribery, you can BLOW the whistle by calling a free hotline on **0800 000 663**.

## **20. COMMUNICATION**

- 20.1 SEDFA may communicate with bidders where clarity is sought after the closing date of the bid and prior to the award of the contract, or to extend the validity period of the bid, if necessary. Such communications will be done via the Supply Chain officials listed as the contact persons for this bid process.



- 20.2 All communication (enquiries/clarifications) relating to this bid shall take place between the bidder and the Supply Chain Management officials listed as the contact persons for this bid process. Such communication shall be done in writing only.
- 20.3 Communication between the closing date and the award of the bid, between the bidder and other SEDFA officials or persons acting in an advisory capacity for the State, in respect of this bid, is prohibited.

## **21. CONTACT DETAILS**

### **21.1 Main Contact**

Name : Sebotse Mokgabudi  
Tel : 012 748 9725  
Email : smokgabudi@sedfa.org.za

**NB:** Communication relating to the bid process outside officially designated channels is **strictly prohibited** and should bidders be found to be in contact with any of SEDFA's staff members on matters relating to this bid, such bidders shall automatically be disqualified from this bid process.

## **22. SCOPE OF WORK / TERMS OF REFERENCE**

The Scope of Work / Term of Reference is attached as **ANNEXURE E**.

## **23. ANNEXURES**

Annexure A: Stage 1 - Administrative Compliance Requirements (Initial Screening Process)  
Annexure B: Stage 2 - Mandatory Requirements  
Annexure C: Stage 3 - Functionality Requirements  
Annexure D: Stage 4 - Price and Preference  
Annexure E: Scope of Work / Terms of Reference  
Appendix 1: Bid Proposal Template



## ANNEXURE A

### STAGE 1 - ADMINISTRATIVE COMPLIANCE REQUIREMENTS

| DOCUMENT NAME                                                                               | TEMPLATES                                                                                                                          |
|---------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------|
| <b>National Treasury. Government Procurement: General Conditions of Contract, July 2010</b> | <br>NT General Conditions of Contr                |
| <b>SBD 1</b>                                                                                | <br>SCM-Bid documents<br>SBD 1 - RFB 05-2026-;    |
| <b>SBD 6.1</b>                                                                              | <br>SBD 6.1 SPECIFIC<br>GOALS 80_20 PREFERI       |
| <b>SBD 4</b>                                                                                | <br>SBD 4 -Annexure<br>A-Revised.pdf             |
| <b>GCC</b>                                                                                  | <br>GCC                                         |
| <b>POPIA CONSENT FORM</b>                                                                   | <br>Sedfa POPIA Consent<br>Form 2025.pdf        |
| <b>BEE Sworn Affidavits Templates (EME &amp; QSE General)</b>                               | <br>EME-General-Sector-<br>Code-Affidavit-Honey |
|                                                                                             | <br>QSE-General-Sector-<br>Code-Affidavit-Honey |
| <b>OTHER REGULATIONS, INSTRUCTION NOTES OR GUIDELINES</b>                                   |                                                                                                                                    |
| <b>National Treasury “ Guide on Hourly Rates for Consultancy, published January 2003”.</b>  |                                                                                                                                    |



## **STAGE 1 - ADMINISTRATIVE COMPLIANCE REQUIREMENTS**

During this stage, bid responses will be reviewed for purposes of assessing compliance with the RFB requirements including general bid conditions and the Specific Condition of Bid, which requirements include the following:

- a. The Standard Bid Document (SBD 1, 4 & 6.1) forms must be fully completed and signed by the authorized company representative.
- b. The bidder must submit proof of registration on CSD (Central Supplier Database) in the form of CSD Report.
- c. Submission of valid Tax Compliance Status (TCS) Certificate with a unique security personal, Identification (PIN) issued by the South African Revenue Services certifying that the taxes of the bidder are in the order must be submitted at the closing date and time of the RFB.
- d. The bidder must submit a certified valid B-BBEE certificate; in the event of submission of a B-BBEE Sworn Affidavit, the bidder must ensure that the Affidavit is stamped by the Commissioner of Oath and indicate the ownership percentages and/or specific goals of the Bidding entity;
- e. In bids where Consortium, Joint Ventures and Sub-Contractors are involved, it is required that each party submit separate proof of Tax Clearance Certificate(s) or PIN issued by SARS. Copy of the Consortium/Joint Venture/ Sub-Contracting Agreement duly signed by all parties (If applicable).
- f. The bidder must submit Companies & Intellectual Property Commission (CIPC) company registration documents listing all Directors or Shareholders and certified ID copies for directors/shareholders/members/partners.
- g. Consent Form.

### **Note:**

- If the bidder is listed on the National Treasury List of Restricted Suppliers, it shall result in disqualification of the bid.
- If any of its Directors are Listed on the Register of Defaulters, it shall result in disqualification of the bid.
- If the status of the bidder is reflecting deregistered on CIPC and or CSD shall result in disqualification of the bid.

**Note: Failure to comply with the administrative compliance requirements in Stage 1 the bids proposal will be disqualified for further evaluations.**





## ANNEXURE B

### STAGE 2 - MANDATORY REQUIREMENTS

#### TECHNICAL EVALUATION CRITERIA (MICRO, SMALL, MEDIUM AND LARGE FIRMS) MANDATORY TECHNICAL REQUIREMENTS

Bidders must comply with all mandatory requirements to qualify for stage 3(three) i.e., evaluations on functionality requirements.

The bidder must indicate their compliance/non-compliance to the following requirements and to substantiate as required. The bidder must respond in the format below, where additional information is provided/ attached somewhere else; such information must be clearly referenced.

| NO | MANDATORY REQUIREMENTS                                                                                                                                                                                                                                                                                                                                                                                       | COMPLY/<br>NOT<br>COMPLY |
|----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| 1. | <b>REGISTRATION WITH THE LEGAL PRACTICE COUNCIL (LPC) OF SOUTH AFRICA</b> <ul style="list-style-type: none"> <li>Bidders must be registered with the Legal Practice Council of South Africa;</li> <li>Bidders must submit a valid Fidelity Fund Certificate issued by the LPC for each director in the bidding company.</li> </ul> <b>NB: Copies must be certified and not older than three (03) months.</b> |                          |
| 2. | <b>LETTER OF GOOD STANDING</b> <ul style="list-style-type: none"> <li>Bidders must submit a letter of Good Standing from the LPC for each Director/s within the bidding entity.</li> </ul> <b>NB: Copies must be certified and not older than three (03) months.</b>                                                                                                                                         |                          |
| 3. | <b>CONVEYANCING CERTIFICATE</b> <p>Bidders/Firms applying for the category of conveyancing/property law where applicable, a certificate of admission as a conveyancer of the individual conveyancer employed on a full-time basis by the panel firm must be provided.</p> <b>NB: Copies must be certified and not older than three (03) months.</b>                                                          |                          |
| 4. | <b>EXPOSURE TO FINANCIAL SERVICES SECTOR</b>                                                                                                                                                                                                                                                                                                                                                                 |                          |



| NO | MANDATORY REQUIREMENTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | COMPLY/<br>NOT<br>COMPLY |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
|    | <ul style="list-style-type: none"> <li>• Understanding the NCR terms of reference.</li> <li>• Knowledge of structuring financial transactions.</li> <li>• Understanding the lending institution and its securities.</li> <li>• Contracting within the financial sector.</li> </ul> <p>As proof of the above, bidders must submit a detailed company profile demonstrating their relevant experience, together with a minimum of three (3) reference letters from clients. The reference letters must specifically confirm the bidder's experience in providing legal services relating to financial services and/or matters regulated by the National Credit Regulator (NCR). Generic reference letters that do not explicitly confirm such experience will not be considered.</p> |                          |

**Failure to comply with the above Mandatory requirements in Stage 2 the bid proposals will be disqualified for further evaluations.**



## ANNEXURE C

### STAGE 3: FUNCTIONAL EVALUATION CRITERIA- MICRO, SMALL AND MEDIUM SIZED FIRMS

**ONLY BIDDERS WHO SCORED A MINIMUM OF 70 POINTS FUNCTIONALITY SCORES AS PER THE REQUIREMENTS WILL BE FURTHER EVALUATION ON PRICE AND SPECIFIC GOAL.**

SEDFA would like to promote broad-based transformation and development of micro, small and medium firms in this industry, and as such will appoint firms in the following categories. The bidder must indicate, in the table below, with a tick (√) the relevant category:

| FIRM                     | DEFINITION                                                                   | NO EMPLOYEES            | PLEASE TICK (√) |
|--------------------------|------------------------------------------------------------------------------|-------------------------|-----------------|
| Category 1: Micro firms  | Firm with an annual turnover less than R10 million                           | 0-10 employees          |                 |
| Category 2: Small Firms  | Firm with an annual turnover bigger than R 10million less than R45 million   | 11-50 employees         |                 |
| Category 3: Medium Firms | Firm with an annual turnover greater than R45 million but below R160 million | 51-250 employees        |                 |
| Category 4: Large Firms  | Firm with an annual turnover greater than R160 million                       | Exceeding 250 employees |                 |

**Note: The bidder must submit their latest Financial Statements as proof of their annual turnover as confirmed by an independent accountant. Small businesses with no financial history must submit a letter from their independent accounting firm confirming their financial status and/or projections.**

It is for this purpose that the SEDFA will be using different evaluation criteria for the micro/small/medium and large sized panel firms as depicted on the functional requirement criteria.

### FUNCTIONAL REQUIREMENTS:

**The Bidder(s) with the functionality score of 70 points out of 100 as per requirements will be further evaluated for Price & Specific Goals.**

**The below scoring scale shall be used to evaluated technical proposals:**



## CRITERIA FOR MICRO, SMALL AND MEDIUM SIZED FIRMS

| FUNCTIONALITY REQUIREMENTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | SCORING MATRIX                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | POINTS           |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|
| <p><b>1. COMPANY EXPERIENCE &amp; REFERENCES</b></p> <ul style="list-style-type: none"> <li>The bidder must be in existence/operation for five years and must have a minimum of five (05) years of demonstrable experience in the service category they are bidding for.</li> </ul> <p>The bidder must submit the following as part of its proposal;</p> <p><b>1.1 REFERENCE LETTERS</b></p> <ul style="list-style-type: none"> <li>The bidder must provide reference for the past five (05) years from clients where the bidders recently provided services for each category the bidder is bidding for.</li> <li>Signed and dated reference letters from previous and current clients on the client's letterhead, and the letter should contain the following: <ul style="list-style-type: none"> <li>- Name of department/organization;</li> <li>- Description of the contract;</li> <li>- Contract duration; and</li> <li>- Contact person, contact details and email address.</li> </ul> </li> <li>Details of recent transactions/matters the bidder has handled for each service category.</li> <li>SEDFA reserves the right to consider experiences of external attorneys that have previously provided services to former <b>sefa/Seda/CBDA</b>.</li> <li>Please refer to <b>Section 3 -Table (a)</b> of the document format in which the required information must be furnished.</li> </ul> | <ul style="list-style-type: none"> <li>Five years' experience in the respective service category, including the list of completed transactions/matters = <b>20 points</b>.</li> <li>Above five to six years' experience in the respective service categories, including the completed list of transactions/matters = <b>35 points</b>.</li> <li>Seven and above years' experience in the respective service categories including the list of completed transactions/matters = <b>40 points</b>.</li> </ul> | <p><b>40</b></p> |



| FUNCTIONALITY REQUIREMENTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | SCORING MATRIX                                                                                                                                                                                                                                                                                                                                                                                                      | POINTS    |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <p>NB: Purchase Orders and Appointment Letters will not be considered/accepted.</p> <p>SEDFA reserves the right to verify the reference letter submitted prior to appointment.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                     |           |
| <p><b>2. QUALIFICATION AND EXPERIENCE OF THE ATTORNEYS</b></p> <ul style="list-style-type: none"> <li>The bidder must propose a team of admitted attorneys(s) who will be assigned/working on SEDFA matters.</li> <li>The proposed personnel must be admitted attorney/s in its current employ must have a minimum of five (05) years demonstrable post admission experience in the service category they are bidding for,</li> <li>Detailed CV's of the admitted attorney(s) who will be working on SEDFA matters must clearly indicate qualifications, areas of experience/competence.</li> <li>Please refer to <b>Section 4- Table (b)</b> of the document format in which the required information must be furnished.</li> </ul> | <ul style="list-style-type: none"> <li>Five to six years' experience including relevant qualifications for respective categories = <b>20 points.</b></li> <li>Seven to ten years' experience including relevant qualifications for respective categories = <b>30 points.</b></li> <li>Eleven and above years' experience including relevant qualifications for respective categories = <b>40 points.</b></li> </ul> | <b>40</b> |
| <p><b>3. COMPANY PROFILE- METHODOLOGY AND SERVICE DELIVERY APPROACH</b></p> <ul style="list-style-type: none"> <li>The bidder must demonstrate a detailed and structured approach to the provision of legal services in the service categories for which it is bidding, including but not limited to litigation, dispute resolution, commercial and corporate law, banking and finance law, labour law, property and conveyancing law, notarial services, regulatory and compliance advisory services, and</li> </ul>                                                                                                                                                                                                                | <ul style="list-style-type: none"> <li>No submission to the company profile= <b>0 points.</b></li> <li>Generic / theoretical company profile = <b>5 points.</b></li> <li>Reasonable, but lacks details= <b>10 points.</b></li> <li>Clear, practical and structured approach= <b>15 points.</b></li> <li>Highly strategic, tailored to SEDFA Objectives (recoveries, risk etc) = <b>20 points.</b></li> </ul>        | <b>20</b> |



| FUNCTIONALITY REQUIREMENTS                                                                                                                                                                                                                                                          | SCORING MATRIX | POINTS     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|------------|
| <p>other areas of legal expertise relevant to SEDFA's mandate.</p> <ul style="list-style-type: none"> <li>The submission must include a clearly defined methodology, service delivery approach, and strategy for the effective management and delivery of such services.</li> </ul> |                |            |
| <b>TOTAL FUNCTIONALITY POINTS</b>                                                                                                                                                                                                                                                   |                | <b>100</b> |

## FUNCTIONAL EVALUATION CRITERIA FOR LARGE FIRMS

**ONLY BIDDERS WHO SCORED A MINIMUM OF 70 POINTS FUNCTIONALITY SCORES AS PER THE REQUIREMENTS WILL BE FURTHER EVALUATION ON PRICE AND SPECIFIC GOAL.**

| FUNCTIONALITY REQUIREMENTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | SCORING MATRIX                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | POINTS    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <p><b>1. COMPANY EXPERIENCE &amp; REFERENCE LETTERS</b></p> <ul style="list-style-type: none"> <li>The bidder must be in existence/operation for ten to fifteen years and have a minimum of ten-fifteen (10-15) years of demonstrable experience in the service category they are bidding for.</li> <li>The bidder must submit the following as part of its proposal;</li> </ul> <p><b>1.1 REFERENCES LETTERS</b></p> <ul style="list-style-type: none"> <li>The bidder must provide reference for the past five (05) years from clients where the bidders recently provided services for each category the bidder is bidding for.</li> <li>Signed and dated reference letters from previous and current clients on the client's letterhead, and the letter should contain the following: <ul style="list-style-type: none"> <li>- Name of department/organization;</li> <li>- Description of the contract;</li> <li>- Contract duration; and</li> <li>- Contact person, contact details and email address.</li> </ul> </li> </ul> | <ul style="list-style-type: none"> <li>Ten to fifteen years' experience in the respective service category, including the list of completed transactions/matters = <b>20 points</b></li> <li>Above fifteen to twenty years' experience in the respective service categories, including the completed list of transactions/matters = <b>35 points</b></li> <li>Above twenty years' experience in the respective service categories including the list of completed transactions/matters = <b>40 points</b></li> </ul> | <b>40</b> |



| FUNCTIONALITY REQUIREMENTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | SCORING MATRIX                                                                                                                                                                                                                                                                                                                                                                                                               | POINTS    |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <ul style="list-style-type: none"> <li>• Details of recent transactions/matters the bidder has handled for each service category.</li> <li>• SEDFA reserves the right to consider experiences of external attorneys that have previously provided services to former <b>sefa/Seda/CBDA</b> in the past.</li> <li>• Please refer to <b>Section 3 -Table (a)</b> of the document format in which the required information must be furnished.</li> </ul> <p>NB: Purchase Orders and Appointment Letters will not be considered/accepted.</p> <p>SEDFA reserves the right to verify the reference letter submitted prior to appointment.</p>                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                              |           |
| <p><b>2. QUALIFICATION AND EXPERIENCE OF THE ATTORNEYS</b></p> <ul style="list-style-type: none"> <li>• The bidder must propose a team of admitted attorneys(s) who will be assigned/working on SEDFA matters.</li> <li>• The proposed personnel must be admitted attorney/s in its current employ must have a minimum of ten to fifteen (10-15) years of demonstrable post admission experience in the service category they are bidding for,</li> <li>• Detailed CV's of the admitted attorney(s) who will be working on SEDFA matters must clearly indicate qualifications, areas of experience/competence.</li> </ul> <p>Please refer to <b>Section 4- Table (b)</b> of the document format in which the required information must be furnished.</p> | <ul style="list-style-type: none"> <li>• Ten to fifteen years' experience including relevant qualifications for respective categories = <b>20 points.</b></li> <li>• Above fifteen to twenty years' experience including relevant qualifications for respective categories = <b>35 points.</b></li> <li>• Above twenty experience including relevant qualifications for respective categories = <b>40 points.</b></li> </ul> | <b>40</b> |



| FUNCTIONALITY REQUIREMENTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | SCORING MATRIX                                                                                                                                                                                                                                                                                                                                                                                                    | POINTS        |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|
| <div>3. COMPANY PROFILE- METHODOLOGY AND SERVICE DELIVERY APPROACH</div> <div><ul style="list-style-type: none"><li>The bidder must demonstrate a detailed and structured approach to the provision of legal services in the service categories for which it is bidding, including but not limited to litigation, dispute resolution, commercial and corporate law, banking and finance law, labour law, property and conveyancing law, notarial services, regulatory and compliance advisory services, and other areas of legal expertise relevant to SEDFA's mandate.</li><li>The submission must include a clearly defined methodology, service delivery approach, and strategy for the effective management and delivery of such services.</li></ul></div> | <div><ul style="list-style-type: none"><li>No submission to the company profile= <b>0 points.</b></li><li>Generic / theoretical company profile = <b>5 points.</b></li><li>Reasonable, but lacks details= <b>10 points.</b></li><li>Clear, practical and structured approach= <b>15 points.</b></li><li>Highly strategic, tailored to SEDFA Objectives (recoveries, risk etc) = <b>20 points.</b></li></ul></div> | <div>20</div> |
| TOTAL FUNCTIONALITY POINTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                   | 100           |

***Bidders are required to obtain a minimum threshold of 70 out of 100 points on functionality in order to be evaluated further. Any bidder who scored less than 70 Points will be eliminated and not be evaluated further.***





## ANNEXURE D

### STAGE 4: EVALUATION OF PROPOSAL ON APPLICABLE POINTS SYSTEM

1. Only bidders that have scored a minimum of **70 / 100** on functionality will be evaluated during stage 4 for pricing and specific goals.
2. In terms of Preferential Procurement Regulations pertaining to the Preferential Procurement Policy Framework Act, 2000 (Act 5 of 2000) and the amended regulations; responsive bids will be adjudicated by the State on the applicable point system.
  - a. The applicable preference point system for this tender is the 80/20 preference point system.
  - b. In terms of 80/20 points system, points are awarded to bidders based on:

| CRITERIA       | POINTS            |
|----------------|-------------------|
| Price          | 80                |
| Specific Goals | 20                |
| <b>TOTAL</b>   | <b>100 POINTS</b> |

**Specific Goals for this tender and points that may be claimed are indicated per table below:**

**(Note to Bidders: The bidders must indicate how they claim points for each preference point system. Failure of the bidders to submit the fully completed SBD 6.1 with the points claimed and supported by proof/documentation will results in points being forfeited)**

| Specific Goals Allocated and Points to claimed in terms of this tender                                                    |                                                  |                                                |
|---------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------|------------------------------------------------|
| Indicate the following to support this claim. Failure to provide the required information will result in being forfeited. |                                                  |                                                |
| Indicate Number of <b>Full Time Employed Paid Employees:</b>                                                              | _____                                            |                                                |
| Total Annual Turnover or Revenue:                                                                                         | R_____                                           |                                                |
| Size of Enterprise                                                                                                        | <b>Number of points allocated (80/20 system)</b> | <b>Number of points claimed (80/20 system)</b> |



|                                                                                                                                                                                                                          |      |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|-----------------------------------|------|----|------|------|----|----|---|------|------|------|---|------|------|---|--|--|
|                                                                                                                                                                                                                          |      | (To be completed by the tenderer) |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Micro Enterprise                                                                                                                                                                                                         | 8    |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Small Enterprise                                                                                                                                                                                                         | 5.6  |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Medium Enterprise                                                                                                                                                                                                        | 3.2  |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Large Enterprise                                                                                                                                                                                                         | 0.8  |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Sworn Affidavit/ BBBEE Certificate<br>(Ownership aligned to B-BBEE Status Level)                                                                                                                                         | 2    |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| <table><tr><td>L1</td><td>L2</td><td>L3</td><td>L4</td><td>L5</td><td>L6</td><td>L7</td><td>L8</td></tr><tr><td>2</td><td>1.75</td><td>1.50</td><td>1.25</td><td>1</td><td>0.75</td><td>0.25</td><td>0</td></tr></table> | L1   | L2                                | L3   | L4 | L5   | L6   | L7 | L8 | 2 | 1.75 | 1.50 | 1.25 | 1 | 0.75 | 0.25 | 0 |  |  |
| L1                                                                                                                                                                                                                       | L2   | L3                                | L4   | L5 | L6   | L7   | L8 |    |   |      |      |      |   |      |      |   |  |  |
| 2                                                                                                                                                                                                                        | 1.75 | 1.50                              | 1.25 | 1  | 0.75 | 0.25 | 0  |    |   |      |      |      |   |      |      |   |  |  |
| Black Women Owned (more 30% owned)                                                                                                                                                                                       | 4    |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Target Group: Youth                                                                                                                                                                                                      | 2    |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Spatial: Rural                                                                                                                                                                                                           | 4    |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Spatial: Townships                                                                                                                                                                                                       | 2.4  |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |
| Spatial: City                                                                                                                                                                                                            | 0.8  |                                   |      |    |      |      |    |    |   |      |      |      |   |      |      |   |  |  |

### Supporting Document for Claiming of Specific Goals:

The bidder must submit proof of either a BBBEE Certificate accredited by SANAS or a Sworn Affidavit. Latest Audited Financial Statement of the bidder (Where applicable in terms of Company's Act) and/or independently reviewed financial statements and/or cashflow budget for the new entities with no financial records. The bidder must also indicate point claims on SBD 6.1.

**Size of Enterprise:** Micro, Small, Medium enterprises: 8/20- leave as is split is as follows:

- Micro enterprises: maximum 8 points or 100% for micro-enterprises
- Small enterprises: 5.6 points or 70% of the 8 points
- Medium enterprises: 3.2 Points or 40%
- Large enterprises: 0.8 Points or 10%

**Verification Method:** Statement of Financial Position of the bidder: Latest Audited Financial Statement of the bidder (Where applicable in terms of Company's Act) and/or independently reviewed financial statements and/or cashflow budget for the new entities with no financial records.



**Enterprises are divided into the following categories:**

| SECTORS                     | SIZE CLASS OR OF ENTERPRISE | TOTAL ANNUAL TURNOVER                                                         | TOTAL FULL-TIME EQUIVALENT OF PAID EMPLOYEES |
|-----------------------------|-----------------------------|-------------------------------------------------------------------------------|----------------------------------------------|
| Finance & Business Services | Micro firms                 | Firm with an annual turnover less than R10 million.                           | 0-10 employees                               |
|                             | Small Firms                 | Firm with an annual turnover bigger than R 10million less than R45 million.   | 11-50 employees                              |
|                             | Medium Firms                | Firm with an annual turnover greater than R45 million but below R160 million. | 51-250 employees                             |
|                             | Large Firms                 | Firm with an annual turnover greater than R160 million.                       | Exceeding 250 employees                      |

**B-BBEE (Black Ownership):** Maximum 2/20 points.

| L1 | L2   | L3  | L4   | L5 | L6   | L7   | L8   | L0 |
|----|------|-----|------|----|------|------|------|----|
| 2  | 1.75 | 1.5 | 1.25 | 1  | 0.75 | 0.50 | 0.25 | 0  |

**Verification Method:** BBBEE certificate and Sworn Affidavit:

**Youth** = 2/20 points which will be allocated follows:

**Verification Method: CIPC and or CSD**

**Spatial:** Rural and Township and City-based enterprises: 4/20 points

- Rural = maximum 4 points
- Township=2.4
- City= 0.8

**Verification method:** Copy of Utility Bill, Lease Agreement, Title Deed, outlining the physical address of the company and official letter with stamp from the local councilor.

A maximum of 80 points is allocated for price on the following basis: **80/20**

$$Ps = 80 \left( 1 - \frac{Pt - Pmin}{Pmin} \right)$$

Where

Ps = Points scored for price of tender under consideration

Pt = Price of tender under consideration

Pmin = Price of lowest acceptable tender



- The points scored by a bidder in respect of Specific Goals will be added to the points scored for price.
- Only bidders who have completed and signed the declaration part of the Specific Goal form and who have submitted the relevant supporting documents will be allocated points.
- The points scored will be rounded off to the nearest 2 decimals.
- Criteria for breaking deadlock in scoring:
  - a. If two or more tenderers score an equal total number of points, the contract will be awarded to the tenderer that scored the highest points for Specific Goals.
  - b. If two or more tenderers score equal total points in all respects, the award will be decided by the drawing of lots.
  - c. A contract may, on reasonable and justifiable grounds, be awarded to a tender that did not score the highest number of points.
  - d. SEDFA reserves the right to enter into negotiations with the preferred bidders.
  - e. SEDFA reserves the right to provide policy relating to the handling of information (Protection of Personal Information Act).



## **ANNEXURE E**

### **SCOPE OF WORK/TERMS OF REFERENCE**

#### **APPOINTMENT OF AN EXTERNAL LEGAL PANEL FOR THE SMALL ENTERPRISE DEVELOPMENT AND FINANCE AGENCY (SEDFA) FOR A PERIOD OF THREE (03) YEARS.**

#### **1. SCOPE OF WORK**

##### **1.1 INTRODUCTION**

The Legal and Compliance Division is responsible for providing objective value adding innovative legal advisory services and solutions to SEDFA. The Division ensures that the organisation's legal risks are managed and mitigated adequately and reduces SEDFA's exposure to litigation while simultaneously maximizing on collections and recoveries.

#### **2. OVERVIEW OF REQUIREMENTS**

- 2.1 SEDFA seeks to appoint an External Legal Panel ("the Panel") from which legal services will be sourced on an as-needed basis. SEDFA invites proposals from qualified law firms and/or legal practitioners for appointment to the Panel from all nine (09) provinces of the Republic of South Africa.
- 2.2 The bidders must comply with all relevant government and industry related legislations.
- 2.3 The bidders must also comply with all SEDFA policies, terms and conditions.
- 2.4 The contract is for a period of three (03) years, effective from the date of appointment.

#### **3. BACKGROUND OF THE BID/PANEL**

- 3.1. The purpose of this Request for Bid (RFB) is to appoint external legal panel for the provision of comprehensive legal services for SEDFA for a period of three (03) years.
- 3.2. The Legal and Compliance Division is responsible for providing objective value adding and innovative advisory services to SEDFA. The Division ensures that the organisation's legal risks are managed and mitigated adequately and reduces SEDFA's exposure to litigation while simultaneously maximizing collections and recoveries.
- 3.3. SEDFA seeks to appoint an external legal panel to provide legal services on an as-needed basis.



- 3.4. SEDFA requests proposals from capable external attorneys from all nine (09) provinces of the Republic of South Africa.
- 3.5. SEDFA will consider bid documents/tenders from external attorneys who have a registered office in any/or all provinces.
- 3.6. The required legal advisory services have been categorised into twenty-six (26) categories as reflected in the table below. The bidders must indicate on the table below with a tick (✓) the category the bidder is bidding for:

| NO  | SERVICE CATEGORIES                                                                                                                                                                                                | PLEASE<br>(TICK ✓) |
|-----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| 1.  | Administrative Law.                                                                                                                                                                                               |                    |
| 2.  | Banking and Structured Finance.                                                                                                                                                                                   |                    |
| 3.  | Company Law.                                                                                                                                                                                                      |                    |
| 4.  | Co-Operative Law.                                                                                                                                                                                                 |                    |
| 5.  | Corporate Governance, including King Code principles.                                                                                                                                                             |                    |
| 6.  | Commercial Litigation.                                                                                                                                                                                            |                    |
| 7.  | Debt Collection and Recoveries.                                                                                                                                                                                   |                    |
| 8.  | Development Finance Law.                                                                                                                                                                                          |                    |
| 9.  | Insurance Law, including Insolvency, Business Rescue, Liquidation, Sequestration, and Restructuring.                                                                                                              |                    |
| 10. | Intellectual Property Law.                                                                                                                                                                                        |                    |
| 11. | Labour Law, including Arbitration and Mediation and disciplinary hearings.                                                                                                                                        |                    |
| 12. | Litigation, Arbitration, Dispute Resolution and Mediation.                                                                                                                                                        |                    |
| 13. | Mergers and Acquisitions (M&A).                                                                                                                                                                                   |                    |
| 14. | Project Finance and Infrastructure.                                                                                                                                                                               |                    |
| 15. | Property Law including but not limited to mortgage and notarial bonds, foreclosure on mortgage bonds, perfection of notarial bonds, arrear rental collection and eviction matters.                                |                    |
| 16. | Public Law, including compliance with the Public Finance Management Act (PFMA) and relevant Regulatory Compliance.                                                                                                |                    |
| 17. | Regulatory and Compliance Advisory (including AML/CFT, FICA, PRECCA, POCCA, anti-corruption, fraud risk management, sanctions compliance, financial crime compliance and financial regulatory advisory services). |                    |
| 18. | Security Law (including shares, preference shares, and related instruments).                                                                                                                                      |                    |
| 19. | Structured Finance transactions and Equity Investments.                                                                                                                                                           |                    |
| 20. | Tax Law.                                                                                                                                                                                                          |                    |
| 21. | Provision of Legal Opinions on Complex Legal Matters.                                                                                                                                                             |                    |
| 22. | Procurement and Public Procurement Law.                                                                                                                                                                           |                    |
| 23. | Information, Privacy and Technology Law (including POPIA, PAIA, data protection, cybersecurity, electronic transactions and information governance).                                                              |                    |



| NO  | SERVICE CATEGORIES                                                                                                                                                                                     | PLEASE<br>(TICK ✓) |
|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| 24. | Competition Law (including merger notifications, prohibited practices, market inquiries and competition compliance).                                                                                   |                    |
| 25. | Environmental and Sustainability Law (Environmental, Social and Governance (ESG) and Environmental Law, including environmental compliance, sustainability frameworks and related regulatory matters). |                    |
| 26. | Corporate and Commercial Transactions (including transaction structuring, shareholder arrangements, joint ventures and commercial agreements).                                                         |                    |

**Note: The bidder must ensure that they provide the required response/information to the Evaluation criteria for each service category the bidder is bidding for.**

- 3.7. The bidder must also indicate their regional reach/provinces that they would cover for this tender.

#### **4. DELIVERABLES**

The bidders shall provide various legal services as follows:

##### **4.1. ADVISORY SERVICES**

The provision of legal opinions, advisory memoranda, strategic legal advice, and regulatory guidance across all relevant areas of law. Services may include the interpretation of legislation, review and development of policies, governance advice, compliance advisory services, and support on operational and strategic matters.

##### **4.2. LITIGATION SERVICES**

The provision of litigation and dispute resolution services, including but not limited to the institution and defence of action and application proceedings; drafting and reviewing pleadings, notices and court documents; representation in litigation, arbitration, mediation and other dispute resolution processes; briefing and management of counsel and expert witnesses; taxation of bills of costs; debt recovery proceedings; and all ancillary litigation-related services.

##### **4.3. CONTRACTUAL AND COMMERCIAL SERVICES**

The provision of contractual and commercial legal services including but not limited to:



- 4.3.1 Drafting, reviewing, negotiating and updating contracts, agreements and SEDFA standard templates
- 4.3.2 Drafting and reviewing contractual provisions and bespoke clauses.
- 4.3.3 Conducting legal due diligence on transactions and commercial arrangements.
- 4.3.4 Providing contract vetting and risk assessments.
- 4.3.5 Advising on contractual rights, obligations and remedies.
- 4.3.6 Providing legal opinions relating to contracts, agreements and commercial transactions.
- 4.3.7 Negotiating commercial terms and supporting transaction implementation.

#### **4.4. EMPLOYMENT LAW**

Defend and or initiate all labour related proceedings for SEDFA, including but not limited to conduct of disciplinary proceedings, CCMA, Labour Court and Labour Appeals Court proceedings. Provide employment and labour law services, including the initiation, prosecution and defence of labour-related matters. Services may include disciplinary and incapacity proceedings, grievance management, collective bargaining matters, CCMA proceedings, bargaining council proceedings, Labour Court and Labour Appeal Court litigation, labour law advisory services, employment contract reviews and workplace investigations.

#### **4.5. PROPERTY LAW**

The provision of property and real estate legal services including but not limited to:

- 4.5.1 Mortgage bonds and notarial bonds
- 4.5.2 Registration, perfection and enforcement of security
- 4.5.3 Foreclosure proceedings
- 4.5.4 Arrear rental collection and eviction proceedings
- 4.5.5 Property acquisitions and disposals
- 4.5.6 Due diligence investigations relating to property transactions
- 4.5.7 Lease agreements and property-related disputes
- 4.5.8 Conveyancing and notarial services, where applicable

#### **4.6 REGULATORY AND COMPLIANCE SERVICES**

Provision of legal advisory and support services relating to regulatory compliance, including but not limited to PFMA, Companies Act, FICA, PRECCA, POCCA, POPIA, PAIA, anti-money laundering obligations, anti-corruption compliance, governance frameworks and related regulatory requirements.





## **5. CONFLICT OF INTEREST MANAGEMENT**

- 5.1. The successful bidder shall at all times act in the best interests of SEDFA and shall avoid any actual, potential or perceived conflict of interest.
- 5.2. The successful bidder shall disclose in writing any actual, potential or perceived conflict of interest immediately upon becoming aware thereof.
- 5.3. Without limiting the generality of the above, a conflict of interest includes circumstances where the bidder:
  - (a) acts or proposes to act for any party whose interests are adverse to those of SEDFA;
  - (b) has previously acted for a party in a matter that may compromise the bidder's independence in providing services to SEDFA.
  - (c) has any financial, personal, professional or business relationship that could influence or reasonably be perceived to influence its ability to act independently and objectively on behalf of SEDFA.
- 5.4. SEDFA reserves the right to determine whether a conflict of interest exists and may require the bidder to implement appropriate measures to mitigate the conflict, withdraw from a specific matter, or cease acting for SEDFA on a particular instruction.
- 5.5. The bidder shall maintain appropriate internal conflict checking procedures and shall provide confirmation of such checks upon request by SEDFA.
- 5.6. Failure to disclose a material conflict of interest may result in suspension from the panel, termination of specific instructions, termination of the Service Level Agreement, recovery of damages suffered by SEDFA, and/or referral to the Legal Practice Council.

## **6. RULES RELATING TO JOINT VENTURES, CONSORTIUMS OR PARTNERSHIPS**

- 6.1. **Each partner** must individually comply with the requirements contained in Annexure B and participate in the functionality evaluation contained in Annexure C."
- 6.2. The application must be accompanied by the relevant joint venture, consortium or partnership agreement, setting out amongst others the:
  - 6.2.1. responsibilities of each party;
  - 6.2.2. the bank account;
  - 6.2.3. the consequences of each termination;
  - 6.2.4. the term; and
  - 6.2.5. fees.
- 6.3. The consortium or partnership may not be terminated by any of the parties thereto until either the work undertaken by the joint venture, consortium or partnership under the contract has been completed and all liabilities and claims incurred by and made by the joint venture, consortium or the partnership have been settled.



- 6.4. No party to the agreement shall be entitled to sell, assign or in any manner encumber or transfer its interest or any part thereof in the joint venture, consortium or partnership without obtaining the prior written consent of SEDFA.

## **7. TIMEFRAME/CONTRACT DURATION**

- 7.1. The contract will be valid for a period of three (03) years.
- 7.2. The appointment of the Panel Member(s) will be on an as and when required for a period of three (03) years, effective immediately after the signing of the Service Level Agreement (SLA), subject to an annual review of the Panel Member's performance.

## **8. BID PROPOSAL FORMAT**

All bidders must return their proposal categorized and indexed under the following sections:

### **9. SECTION 1: LEGISLATIVE REQUIREMENTS**

The bidder must supply the required documentation as outlined in this Request for Bid document as outlined in item 3.5.1.

### **10. SECTION 2: MANDATORY REQUIREMENTS**

The bidder must provide the information set out in the mandatory and requirements stated in the bid document.

### **11. SECTION 3: COMPANY PROFILE, EXPERIENCE & REFERENCE LETTERS (FUNCTIONALITY REQUIREMENTS)**

The bidder must provide the information set out in the mandatory and functionality requirements stated in the bid document.

The bidder must attach a detailed copy of the company's profile, clearly outlining the number of years in the service categories/discipline bidding for with a clear indication of experience in the industry.

Experience and reference letters as outlined in the evaluation criteria must be submitted as part of this **Section 3 table (a)**.

### **12. SECTION 4: PROPOSED TEAM CV'S, QUALIFICATIONS AND EXPERIENCE**

The bidder must complete **Section 4 table (b)**, outlining the experience of the bidders' proposed team/staff that will be assigned to deliver the project. Should any of these team/staff members be replaced, authorisation must be requested from SEDFA.



The proposed replacement must meet the requirements as outlined in this Scope of Work/TOR.

A Curriculum Vitae must be attached for each staff member who will be assigned to the project team.

Submit **Curriculum Vitae** to substantiate staff experience and submit **proof of qualifications**.

### 13. SECTION 5: COMPANY PROFILE: METHODOLOGY AND SERVICE DELIVERY APPROACH

The bidder must demonstrate detailed litigation strategies in this section in the service category they are bidding for.

### 14. SECTION 6: PRICING PROPOSAL

The bidder must submit a **pricing proposal** as outlined below:

#### 14.1. FEES FOR ADVISORY WORK

| FEES FOR ADVISORY WORK INCLUDING LEGAL OPINIONS, GOVERNANCE ADVICE, NEGOTIATIONS AND REGULATORY MATTERS |                               |
|---------------------------------------------------------------------------------------------------------|-------------------------------|
| POSITION                                                                                                | RATE PER HOUR (VAT INCLUSIVE) |
| Directors/Partner                                                                                       |                               |
| Senior Associate                                                                                        |                               |
| Associate                                                                                               |                               |
| Professional Assistant                                                                                  |                               |
| Candidate Attorney                                                                                      |                               |
| Paralegal                                                                                               |                               |
| Administrative Staff/Messengers                                                                         |                               |

#### 14.2. FEES FOR URGENT MATTERS

| FEES FOR URGENT MATTERS INCLUDING URGENT COURT APPLICATIONS AND COMMERCIAL WORK |                               |
|---------------------------------------------------------------------------------|-------------------------------|
| POSITION                                                                        | RATE PER HOUR (VAT INCLUSIVE) |
| Directors/Partner                                                               |                               |
| Senior Associate                                                                |                               |
| Associate                                                                       |                               |
| Professional Assistant                                                          |                               |
| Candidate Attorney                                                              |                               |
| Paralegal                                                                       |                               |
| Administrative Staff/Messengers                                                 |                               |

#### 14.3. The bidder must submit a **Fixed fee pricing proposal**, which should be based on the appropriate court tariffs and include caps, fixed fees, stage-based pricing and or collection commission as outlined below:



| SERVICE                                                      |                                                     | FEE<br>(VAT INCLUSIVE) |
|--------------------------------------------------------------|-----------------------------------------------------|------------------------|
| <b>Contract drafting</b>                                     | Fixed fee per contract                              |                        |
| <b>Contract review</b>                                       | Fixed fee per contract                              |                        |
| <b>Due Diligence and report drafting in respect of Deals</b> | Fixed fee per matter                                |                        |
| <b>Litigation, Including recoveries</b>                      | Tariff / Fixed Batch fees/<br>collection commission |                        |
|                                                              | R0 ≤ R100 000                                       |                        |
|                                                              | R100 001 ≤ R400 000                                 |                        |
|                                                              | R400 001 ≤ R1 000 000                               |                        |
|                                                              | R1 000 001 ≤ R10 000 000                            |                        |
|                                                              | Above R10 000 000                                   |                        |
| <b>Policy drafting</b>                                       | Fixed fee per policy                                |                        |
| <b>Policy review</b>                                         | Fixed fee per policy                                |                        |
| <b>Labour matters</b>                                        | Fixed fee per hearing day                           |                        |

- 14.4. For competitive purposes, the fees indicated above will be used for 80/20 Preference Points Calculation as per “**ANNEXURE D**”.
- 14.5. Only successful bidders will be subjected to price negotiation prior to the execution of the Service Level Agreement.
- 14.6. SEDFA reserves right to negotiate rates.
- 14.7. Appointment to the panel does not guarantee the allocation of any work or instructions. Work will be allocated at SEDFA's discretion, taking into account relevant considerations, including but not limited to:
- Specialised expertise
  - Provincial presence/jurisdiction
  - Capacity and availability
  - Performance
  - Rotation
  - Jurisdiction

## 15. SECTION 7: ADDITIONAL INFORMATION

Any additional information pertinent to the proposal can be attached under this Section.

An electronic editable copy of the Bid Proposal Template will be available on the SEDFA website: <http://www.sedfa.org.za/publications/tenders>



## **APPENDIX 1**

### **BID PROPOSAL COVER PAGE**

#### **APPOINTMENT OF A PANEL OF EXTERNAL ATTORNEYS FOR THE SMALL ENTERPRISE DEVELOPMENT AND FINANCE AGENCY (SEDFA) FOR A PERIOD OF THREE (03) YEARS.**

|                  |  |
|------------------|--|
| Bid Number       |  |
| MAAA Number      |  |
| Company name     |  |
| CSD Number       |  |
| Contact Person   |  |
| Telephone Number |  |
| e-mail address   |  |
| Date             |  |



## 1. SECTION 1: LEGISLATIVE REQUIREMENTS

Attach all required documentation behind this section.

## 2. SECTION 2: MANDATORY REQUIREMENTS

The bidder must provide the information set out in the mandatory requirements stated in the bid document.

## 3. SECTION 3: COMPANY PROFILE, EXPERIENCE & REFERENCE LETTERS (FUNCTIONALITY REQUIREMENTS)

*Note to the Bidder: The bidder must complete the information set out below in response to the requirements stated in the bid document. If the bidder requires more space than is provided below, it must prepare a document in substantially the same format setting out all the information referred to below and return it with this Returnable Schedule.*

The bidder must provide the following information for **Each of the Service Category** the bidder is bidding for:

**Table (a)** Details of the bidder's current and past relevant experience in the service categories the bidder is bidding for (please refer to Annexure C). **Reference letters provided under this section should be the same as individual letters provided on Annexure C on Functionality Requirements.**

| Service Category | Client Full Name | Transaction / Matter Handled | Transaction Value | Project period |          | Description of service performed and extent of Bidder's responsibilities | Name, title, and telephone contact of client |
|------------------|------------------|------------------------------|-------------------|----------------|----------|--------------------------------------------------------------------------|----------------------------------------------|
|                  |                  |                              |                   | Start Date     | End Date |                                                                          |                                              |
|                  |                  |                              |                   |                |          |                                                                          |                                              |
|                  |                  |                              |                   |                |          |                                                                          |                                              |
|                  |                  |                              |                   |                |          |                                                                          |                                              |



#### 4. SECTION 4: BIDDER TEAM QUALIFICATIONS AND EXPERIENCE

**Table (b)** Details of the bidder's proposed team of attorneys/lawyers (please refer to Annexure C). CVs information provided under this section should be the same as per proposed list of attorneys on Annexure C on Functionality Requirements.

| Name & Surname of team/staff member | Position/ Designation | Qualifications | Role/Duties in project/matter | Number years of experience | Relevant contract experience             |
|-------------------------------------|-----------------------|----------------|-------------------------------|----------------------------|------------------------------------------|
|                                     |                       |                |                               |                            | Projects/Matters work on, client details |
|                                     |                       |                |                               |                            |                                          |
|                                     |                       |                |                               |                            |                                          |
|                                     |                       |                |                               |                            |                                          |
|                                     |                       |                |                               |                            |                                          |
|                                     |                       |                |                               |                            |                                          |
|                                     |                       |                |                               |                            |                                          |



## 5. SECTION 5: COMPANY PROFILE, METHODOLOGY AND SERVICE DELIVERY APPROACH

The bidder must demonstrate detailed litigation strategies in this section in the service category they are bidding for.

## 6. SECTION 6: PRICING PROPOSAL

Attach required documentation under this section.

### 6.1. FEES FOR ADVISORY WORK

| FEES FOR ADVISOR WORK INCLUDING LEGAL OPINIONS, GOVERNANCE ADVICE, NEGOTIATIONS AND REGULATORY MATTERS |                               |
|--------------------------------------------------------------------------------------------------------|-------------------------------|
| POSITION                                                                                               | RATE PER HOUR (VAT INCLUSIVE) |
| Directors/Partner                                                                                      |                               |
| Senior Associate                                                                                       |                               |
| Associate                                                                                              |                               |
| Professional Assistant                                                                                 |                               |
| Candidate Attorney                                                                                     |                               |
| Paralegal                                                                                              |                               |
| Administrative Staff/Messengers                                                                        |                               |

### 6.2. FEES FOR URGENT MATTERS

| FEES FOR URGENT MATTERS INCLUDING URGENT COURT APPLICATIONS AND COMMERCIAL WORK |                               |
|---------------------------------------------------------------------------------|-------------------------------|
| Position                                                                        | RATE PER HOUR (VAT INCLUSIVE) |
| Directors/Partner                                                               |                               |
| Senior Associate                                                                |                               |
| Associate                                                                       |                               |
| Professional Assistant                                                          |                               |
| Candidate Attorney                                                              |                               |
| Paralegal                                                                       |                               |
| Administrative Staff/Messengers                                                 |                               |

### 6.3. The bidder must submit a Fixed fee pricing proposal, which should be based on the appropriate court tariffs and include caps, fixed fees, stage-based pricing and or collection commission as outlined below:

| SERVICE           |                        | FEE (VAT INCLUSIVE) |
|-------------------|------------------------|---------------------|
| Contract drafting | Fixed fee per contract |                     |
| Contract review   | Fixed fee per contract |                     |





| SERVICE                                                      |                                                     | FEE<br>(VAT<br>INCLUSIVE) |
|--------------------------------------------------------------|-----------------------------------------------------|---------------------------|
| <b>Due Diligence and report drafting in respect of Deals</b> | Fixed fee per matter                                |                           |
| <b>Litigation, Including recoveries</b>                      | Tariff / Fixed Batch fees/<br>collection commission |                           |
|                                                              | R0 ≤ R100 000                                       |                           |
|                                                              | R100 001 ≤ R400 000                                 |                           |
|                                                              | R400 001 ≤ R1 000 000                               |                           |
|                                                              | R1 000 001 ≤ R10 000 000                            |                           |
|                                                              | Above R10 000 000                                   |                           |
| <b>Policy drafting</b>                                       | Fixed fee per policy                                |                           |
| <b>Policy review</b>                                         | Fixed fee per policy                                |                           |
| <b>Labour matters</b>                                        | Fixed fee per hearing day                           |                           |

## 7. SECTION 7: ADDITIONAL INFORMATION

Any additional information that is considered pertinent to the proposal can be attached under this section.